

EMAIL TEXT EXTRACT

This file is the email text. It is not the original letterhead PDF. If a PDF was attached, that file is stored separately.

Date: Wed, 5 Dec 2018 22:09:26 +0000

From: Info SCT <info@sct.gov.au>

To: Rich McLean <rich@richmclean.com.au>

Subject: RE: Complaint from Richard Mclean, seeking assistance. (Treat as In Confidence) [DLM=Sensitive]

Dear Richard

The Tribunal no longer accepts complaints. The Australian Financial Complaints Authority (AFCA) is the new external dispute resolution scheme for financial services complaints, and it started accepting complaints on 1 November 2018.

You can learn more about AFCA at www.afca.org.au, or call the team on 1800 931 678 for more information on how to make a complaint.

Yours sincerely

Complaint Liaison | Superannuation Complaints Tribunal

| p: 1300 884 114 | e: info@sct.gov.au | www.sct.gov.au | Locked Bag 3060 Melbourne VIC 3001

From: Rich McLean <rich@richmclean.com.au>

Sent: Thursday, 6 December 2018 8:51 AM

To: Info SCT <info@sct.gov.au>

Subject: Complaint from Richard Mclean, seeking assistance.

Dear sci.gov.au,

I have an ongoing complaint with First State Super who I have been emailing but not getting a response from.

I'd kindly ask what you think I should do from here? Greg Callister has not returned my emails.

Details of the case and my initial email are below.

Sincerely,

Richard Mclean

0418391532

Dear Richard,

Thank you for your email of 26 November 2018.

I apologise if our email led you to believe that you are currently a member of First State Super. First State Super has never held an account for you and First State Super did not take over the National Preservation Trust (NPT).

The NPT was operated by AXA Australia, and was merged with the AMP Eligible Rollover Fund after the purchase of AXA Australia by AMP.

As you wrote to us querying a disablement insurance payment that you received from Health Super prior to the merger of Health Super and First State Super, I have confirmed that you were an ex-member of Health Super at the time of the merge.

As requested in your previous email, we are investigating the processing of your disablement claim, and your statement that you applied for an additional amount of cover.

I have included a copy of the text of your original email for your records.
We will write to you with the findings of our investigation, once completed.
Yours sincerely,
Greg Callister
Member Liaison Officer
[First State Super Logo]

Dear First State Super,

My name is Richard Mclean.

I received a TPD payout on disability grounds some years ago before you had taken over Health Super, where I was insured. The amount I recall was about 70K.

At the time I was a 'Consumer Consultant', with Department of Human Services in Broadmeadows, Victoria, advocating for those with a mental illness from someone who had a mental illness of their own. I am writing today for a few pressing reasons.

The first and foremost is that my TPD payout was dutifully approved after an independent psychiatrist interviewed me, however it has taken me this long to realise and remember that I ticked the box of highest insurance cover on my Human Resources form when I joined North West Area Mental health Service.

The payout figure was much less than anticipated, hence this call to action.

The amount I received was about 72K from memory, and I recall the higher insured amount was much more.

I am asking you to locate the form I filled out which should be in your records in order to provide evidence to me that I did not in fact, tick the highest insured box. (Which I did).

If you are unable to provide this evidence, then I will sign a stat declaration and take legal action to recover the funds owing to me. I recall it was in the ballpark of 300K.

If you cannot locate the form, I would say this is a tactic employed to delay my proper and just reimbursement that I was insured for.

I truly believe I ticked the highest insured box when I went for the role, and I will follow up with a Freedom of Information application to your records to prove that I did, indeed tick the highest level of cover.

If you do not kindly co-operate with this request to provide evidence I was paid out the right amount I will be seeking Slater and Gordon, or Blackburn Lawyers, (no-win-no-fee), to take on the case which I know to be true and correct.

I have contacted both entities with a copy of this email, for their records and also for their record of my first contact with your agency.

I will wait for a few days then I will be calling your office to find a resolution to this problem with supporting evidence not withholding.

Sincerely,
Richard William Mclean

This message is intended for the addressee named and may contain confidential information. If you are not the intended recipient, please delete it and notify the sender. This message may contain financial advice but does not take into account specific objectives, financial situation or needs. The First State Super Product Disclosure Statement is available from firststatesuper.com.au for more information. Views expressed in the message are those of the individual sender, except where the message states otherwise and the sender is authorised to state them to

be the views of the FSS Trustee Corporation ABN 11 118 202 672<tel:11%20118%20202%20672>, AFSL 293340, Trustee for the First State Superannuation Scheme ABN 53 226 460 36 5<tel:53%20226%20460%20365> or First State Super Financial Services Pty Ltd ABN 37 09 6 452 318<tel:37%20096%20452%20318>, AFSL 240019